

IN THE PROBATE COURT OF HICKMAN COUNTY, TENNESSEE
AT CENTERVILLE

IN THE MATTER OF:
THE ESTATE OF LOU ANNA LAWHORN,
Deceased

No. 902195P

MOTION TO REMOVE EXECUTORS

Eddie Lawhorn, a residuary beneficiary of the Estate of Lou Anna Lawhorn, through counsel, moves the Court for an Order removing [REDACTED] and Freddie Joe Lawhorn as the co-executors of the Estate of Lou Anna Lawhorn and further moves the Court for an Order appointing Eddie Lawhorn the Successor Administrator C.T.A. of the estate.

In support of the Motion, the movant would show that:

1. [REDACTED] and Freddie Joe Lawhorn, the co-executors of the Estate of Lou Anna Lawhorn, have failed to make accountings as required by Tennessee Code Annotated Section 30-2-601(a).
2. [REDACTED] and Freddie Joe Lawhorn, the co-executors of the Estate of Lou Anna Lawhorn, have failed to distribute the estate pursuant to TCA § 30-2-710.
3. The movant filed a Complaint to Compel Accounting and Payment of Distributive Share July 30, 1992 and service was had on [REDACTED] and Freddie Joe Lawhorn, the co-executors, August 5, 1992 and August 15, 1992, respectively, but no answer or other response has been made to the pleadings.
4. [REDACTED] and Freddie Lawhorn have failed to discharge their duties in accordance with Tennessee law and should be removed to allow appointment of an Administrator C.T.A. who will complete and conclude the administration of this estate.

Dated: September 24, 1992.

By [REDACTED]

Attorney for Eddie Lawhorn

Chattanooga, TN 37402

CERTIFICATE OF SERVICE

I hereby certify that a true and exact copy of the foregoing document has been forwarded by U. S. Mail to the following persons and I further certify the parties named are advised said document will be heard at 9:00 a.m. on October 6, 1992.

[REDACTED]
Freddie Joe Lawhorn

[REDACTED]
Greenfield, TN 37743

[REDACTED]
Dickson, TN 37055

On this 24th day of Septmeber, 1992.

File Ref: 22/A LW/2